(f) The term "immigration laws" includes this chapter and all laws, conventions, and treaties of the United States relating to the immigration, exclusion, or explusion of aliens;

(g) The term "person" includes individuals, partnerships, corporations, and associations;

(h) The term "Commissioner General" means the Commissioner General of Immigration;

(i) The term "application for admission" has reference to the application for admission to the United States and not to the application for the issuance of the immigration visa;

(j) The term "permit" means a permit issued under section 210 of this title;

(k) The term "unmarried," when used in reference to any individual as of any time, means an individual who at such time is not married, whether or not previously married;

(l) The terms "child," "father," and "mother," do not include a child or parent by adoption unless the adoption took place before January 1, 1924;

(m) The terms "wife" and "husband" do not include a wife or husband by reason of a proxy or picture marriage. (May 26, 1924, c. 190, § 28, 43 Stat. 168; June 2, 1924, c. 233, 43 Stat. 253.)

225. Appropriation authorized.—The appropriation of such sums as may be necessary for the enforcement of this subchapter is authorized. (May 26, 1924, c. 190, § 29, 43 Stat. 169.)

226. Partial invalidity; effect of.—If any provision of this subchapter, or the application thereof to any person or circumstances, is held invalid, the remainder thereof, and the application of such provision to other persons or circumstances, shall not be affected thereby. (May 26, 1924, c. 190, § 32, 43 Stat. 169.)

227. Certain aliens temporarily admitted under Act May 19, 1921, and under bond in excess of quotas may remain.—Aliens who entered the United States before March 7, 1922, in excess of quotas fixed under authority of Act May 19, 1921, chapter 8, Forty-second Statutes, page 5, entitled "An Act to limit the immigration of aliens into the United States," and were temporarily admitted under bond, may, if otherwise admissible, and if not subject to deportation for other causes, be permitted by the Secretary of Labor to remain in the United States without regard to the provisions of such Act of May 19, 1921. In the case of any alien so permitted to remain the bond shall be canceled. (Dec. 27, 1922, c. 15, 42 Stat. 1065.)

228. Certain aliens arriving in excess of quota permitted to remain.—The following aliens arriving in excess of quotas fixed under authority of Act May 19, 1921, chapter 8, Forty-second Statutes, page 5, entitled "An Act to limit the immigration of aliens into the United States," as amended and extended, were, if otherwise admissible and if not subject to deportation for other causes, properly permitted to enter and remain in the United States without regard to the provisions of such Act of May 19, 1921, as amended and extended:

(1) Aliens admitted prior to June 7, 1924, in excess of quota and charged to the quota of a later month;

(2) Aliens admitted prior to said date under a construction of such Act of May 19, 1921, required by court decision;

(3) Aliens arriving in the United States after May 26 and before July 1, 1924, who departed for the United States from the last port outside the United States or outside foreign contiguous territory on or before May 26, 1924, believing in good faith that they would be admitted pursuant to a construction of such Act of May 19, 1921, required by court decision; and

(4) Aliens temporarily admitted prior to June 7, 1924, under bond to relieve cases of extreme hardship. (June 7, 1924, c. 370, 43 Stat. 669.)

229. Act May 19, 1921, chapter 8, in force for imposition, collection, and enforcement of penalties; deportation of aliens entering in violation thereof.—Act May 19, 1921, chapter 8, Forty-second Statutes, page 5, entitled "An Act to limit the immigration of aliens into the United States," as amended and extended, shall, notwithstanding its expiration on June 30, 1924, remain in force thereafter for the imposition, collection, and enforcement of all penalties that may have accrued thereunder, and any alien who prior to July 1, 1924, may have entered the United States in violation of such Act or regulations made thereunder may be deported in the same manner as if such Act had not expired. (May 26, 1924, c. 190, § 30, 43 Stat. 169.)

230. Certain alien residents conscripted or volunteering for service during World War lawfully readmitted.—Notwithstanding the provisions of section 136 of this title, aliens lawfully resident in the United States who enlisted or were conscripted for the military or naval service of the United States, or of any one of the nations cobelligerent of the United States in the World War; and aliens lawfully resident in the United States who enlisted for service with Czechoslovak, Polish, or other independent forces attached to the United States Army or to the army or navy of any one of the cobelligerents of the United States in the World War, who within one year after the termination of the war applied for readmission to this country, after being honorably discharged or granted furlough abroad by the proper military or naval authorities, or after being rejected on final examination in connection with their enlistment or conscription were, within two years after the termination of the war, lawfully readmitted into the United States; and any alien of either of the foregoing descriptions who would otherwise have been excluded under said section 136 on the ground that he was idiotic, imbecile, feeble-minded, epileptic, insane, or has had one or more attacks of insanity, or on the ground that he was afflicted with constitutional psychopathic inferiority, tuberculosis, a loathsome or dangerous contagious disease, or mental defect, was lawfully readmitted where it was proved that the disability was acquired while the alien was serving in the military or naval forces of the United States or of any one of the nations cobelligerent of the United States in the World War or in an independent force of the kind hereinbefore described, if such alien returned to a port of the United States within two years after the termination of the war. (Oct. 19, 1918, c. 190, 40 Stat. 1014.)

Chapter 7.—EXCLUSION OF CHINESE.

Sec.

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Section 261. Control of exclusion of Chinese.—The authority, power and jurisdiction by virtue of any law in relation to the exclusion from and the residence within the United States, its territories and the District of Columbia, of Chinese and persons of Chinese descent, are conferred upon the Secretary of Labor, and the authority, power and jurisdiction in relation thereto previously vested by law or treaty in the collectors of customs and the collectors of internal revenue, are vested in such officers under the control of the Commissioner General of Immigration, as the Secretary of Labor may designate therefor. (Feb. 14, 1903, c. 552, § 7, 32 Stat. 828.)

262. Same; officer enforcing Chinese exclusion law at Washington.—Nothing in sections 39 or 46 of Title 5 shall be construed to prevent the Secretary of Labor from detailing one officer employed in the enforcement of the Chinese exclusion laws for duty at the Department of Labor at Washington. (June 6, 1900, c. 791, § 1, 31 Stat. 611; Feb. 14, 1903, c. 552, § 7, 32 Stat. 828; Mar. 4, 1913, c. 141, 37 Stat. 736.)

263. Coming of Chinese laborers to United States suspended.—The coming of Chinese laborers to the United States is suspended, and it shall not be lawful for any Chinese laborer to come from any foreign port or place, or having so come to remain within the United States. (May 6, 1882, c. 126, § 1, 22 Stat. 58; July 5, 1884, c. 220, 23 Stat. 115; May 5, 1892, c. 60, § 1, 27 Stat. 25; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

264. Same; exemptions.—The preceding section shall not apply to Chinese laborers who were in the United States on the 17th day of November, 1880, or who came into the same before the expiration of ninety days after May 6, 1882, nor shall sections 263 and 279 of this title apply to Chinese laborers, who shall produce to such master before going on board such vessel, and shall produce to such officer under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor, at the port in the United States at which such vessel shall arrive, the evidence hereinafter in this chapter required of his being one of the laborers in this section mentioned. (May 6, 1882, c. 126, § 3, 22 Stat. 59; July 5, 1884, c. 220, 23 Stat. 115; Sept. 13, 1888, c. 1015, § 10, 25 Stat. 478.)

265. Chinese other than laborers; certificates of identity.—Every Chinese person, other than a laborer, who may be entitled to come within the United States, and who shall be about to come to the United States, shall obtain the permission of and be identified as so entitled by the Chinese Government, or of such other foreign government of which at the time such Chinese person shall be a subject, in each case to be evidenced by a certificate issued by such government, which certificate shall be in the English language, and shall show such permission, with the name of the permitted person in his or her proper signature, and which certificate shall state the individual, family, and tribal name in full, title or official rank, if any, the age, height, and all physical peculiarities, former and present occupation or profession, when and where and how long pursued, and place of residence of the person to whom the certificate is issued, and that such person is entitled by this section to come within the United States. If the person so applying for a certificate shall be a merchant, said certificate shall, in addition to above requirements, state the nature, character, and estimated value of the business carried on by him prior to and at the time of his application as aforesaid. Nothing in this section shall be construed as embracing within the meaning of the word "merchant," hucksters, peddlers, or those engaged in taking, drying, or otherwise preserving shell or other fish for home consumption or exportation. If the certificate be sought for the purpose of travel for curiosity, it shall also state whether the applicant intends to pass through or travel within the United States, together with his financial standing in the country from which such certificate is desired. The certificate provided for in this section, and the identity of the person named therein shall, before such person goes on board any vessel to proceed to the United States, be visaed by the indorsement of the diplomatic representatives of the United States in the foreign country from which said certificate issues, or of the consular representative of the United States at the port or place from which the person named in the certificate is about to depart; and such diplomatic representative or consular representative whose indorsement is so required is empowered, and it shall be his duty, before indorsing such certificate as aforesaid, to examine into the truth of the statements set forth in said certificate, and if he shall find upon examination that said or any of the statements therein contained are untrue it shall be his duty to refuse to indorse the same. Such certificate visaed as aforesaid shall be prima facie evidence of the facts set forth therein, and shall be produced to such officer under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor, and afterward produced to the proper authorities of the United States whenever lawfully demanded, and shall be the sole evidence permissible on the part of the person so producing the same to establish a right of entry into the United States; but said certificate may be controverted and the facts therein stated disproved by the United States authorities. (May 6, 1882, c. 126, § 6, 22 Stat. 60; July 5, 1884, c. 220, 23 Stat. 116; Feb. 14, 1903, c. 552, § 7, 32 Stat. 828; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737.)

266. Lists of Chinese passengers by masters of vessels arriving from foreign ports.—The master of any vessel arriving in the United States from any foreign port or place shall, at the same time he delivers a manifest of the cargo, and if there be no cargo, then at the time of making a report of the entry of the vessel pursuant to law, in addition to the other matter required to be reported, and before landing, or permitting to land, any Chinese passengers, deliver and report to such officer under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor a separate list of all Chinese passengers taken on board his vessel at any foreign port or place, and all such passengers on board the vessel at that time, such list shall show the names of such passengers (and if accredited officers of the Chinese or of any other foreign government, traveling on the business of that government, or their servants, with a note of such facts), and the names and other particulars as shown by their respective certificates; and such list shall be sworn to by the master in the manner required by law in relation to the manifest of the cargo. Any refusal or willful neglect of any such master to

comply with the provisions of this section shall incur the same penalties and forfeiture as are provided for a refusal or neglect to report and deliver a manifest of the cargo. (May 6, 1882, c. 126, § 8, 22 Stat. 60; July 5, 1884, c. 220, 23 Stat. 117; Feb. 14, 1903, c. 552, § 7, 32 Stat. 828; Mar. 4, 1913, c. 141, § 8, 37 Stat. 737.)

267. Same; comparison with certificates before landing allowed.—Before any Chinese passengers are landed from any such vessel, such officers under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor shall proceed to examine such passengers, comparing the certificates with the list and with the passengers; and no passenger shall be allowed to land in the United States from such vessel in violation of law. (May 6, 1882, c. 126, § 9, 22 Stat. 60.)

268. Forfeitures of vessels.—Every vessel whose master shall knowingly violate any of the provisions of this chapter shall be deemed forfeited to the United States, and shall be liable to seizure and condemnation in any district of the United States into which such vessel may enter or in which she may be found. (May 6, 1882, c. 126, § 10, 22 Stat. 61; July 5, 1884, c. 220, 23 Stat. 115.)

269. Bringing or landing Chinese persons not entitled to enter; penalty.—Any person who shall knowingly bring into or cause to be brought into the United States by land, or who shall aid or abet the same, or aid or abet the landing in the United States from any vessel, of any Chinese person not lawfully entitled to enter the United States, shall be deemed guilty of a misdemeanor, and shall on conviction thereof, be fined in a sum not exceeding $1,000, and imprisoned for a term not exceeding one year. (May 6, 1882, c. 126, § 11, 22 Stat. 61; July 5, 1884, c. 220, 23 Stat. 117.)

270. Certificates of identity under Act May 6, 1882, void.—Every certificate issued prior to October 1, 1888, in pursuance of the provisions of sections 4 and 5 of the Act of May 6, 1882, chapter 126, Twenty-second Statutes, page 59, for the purpose of properly identifying Chinese laborers who were in the United States on the 17th day of November, 1880, or who came into the same before the expiration of ninety days after the passage of said Act is declared void and of no effect, and the Chinese laborer claiming admission, by virtue thereof shall not be permitted to enter the United States. (Oct. 1, 1888, c. 1064, § 2, 25 Stat. 504.)

271. Chinese not to enter by land without certificate; payment of charges for maintenance or return of Chinese persons.—No Chinese person shall be permitted to enter the United States by land without producing to the proper officer as mentioned in section 265 of this title the certificate required by said section of Chinese persons seeking to land from a vessel, and the United States shall pay all costs and charges for the maintenance and return of any Chinese person having the certificate prescribed by law as entitling such Chinese person to come into the United States, who may not have been permitted to land from any vessel by reason of any provision of this chapter. All charges for maintenance or return of Chinese persons applying for admission to the United States shall be paid or reimbursed to the United States by the person, company, partnership or corporation bringing such Chinese to a port of the United States as applicants for admission. (May 6, 1882, c. 126, § 12, 22 Stat. 61; July 5, 1884, c. 220, 23 Stat. 117; Sept. 13, 1888, c. 1015, § 13, 25 Stat. 479; Aug. 24, 1912, c. 355, § 1, 37 Stat. 476.)

272. Persons exempted from application of exclusion law.—The preceding sections of this chapter shall not apply to diplomatic and other officers of the Chinese or other Governments traveling upon the business of that Government, whose credentials shall be taken as equivalent to the certificate mentioned therein, and shall exempt them and their body and household servants from the provisions of such sections as to other Chinese persons. (May 6, 1882, c. 126, § 13, 22 Stat. 61; July 5, 1884, c. 220, 23 Stat. 118.)

273. Persons to whom exclusion law is applicable; "Chinese laborers" defined.—The provisions of the preceding sections of this chapter shall apply to all subjects of China and Chinese, whether subjects of China or any other foreign power; and the words Chinese laborers, wherever used in said sections shall be construed to mean both skilled and unskilled laborers and Chinese employed in mining. (May 6, 1882, c. 126, § 15, 22 Stat. 61; July 5, 1884, c. 220, 23 Stat. 118.)

274. Violations of law punishable.—Any violation of any of the provisions of this chapter, the punishment of which is not otherwise herein provided for, shall be deemed a misdemeanor, and shall be punishable by a fine not exceeding $1,000, or by imprisonment for not more than one year, or both such fine and imprisonment. (May 6, 1882, c. 126, 22 Stat. 58; July 5, 1884, c. 220, 23 Stat. 118.)

275. Return of Chinese laborers after departure permitted conditionally.—No Chinese laborer in the United States shall be permitted, after having left, to return thereto, except under the conditions stated in sections 276 and 277 of this title. (Sept. 13, 1888, c. 1015, § 5, 25 Stat. 477; Oct. 1, 1888, c. 1064, § 1, 25 Stat. 504; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

276. Same; conditions under which they may return.—No Chinese laborer within the purview of the preceding section shall be permitted to return to the United States unless he has a lawful wife, child, or parent in the United States, or property therein of the value of $1,000, or debts of like amount due him and pending settlement. The marriage to such wife must have taken place at least a year prior to the application of the laborer for a permit to return to the United States, and must have been followed by the continuous cohabitation of the parties as man and wife.

If the right to return be claimed on the ground of property or of debts, it must appear that the property is bona fide and not colorably acquired for the purpose of evading the provisions of this section, or that the debts are unascertained and unsettled, and not promissory notes or other similar acknowledgments of ascertained liability. (Sept. 13, 1888, c. 1015, § 6, 25 Stat. 477; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

277. Same; identification of laborers; certificates; ports of entry.—A Chinese person claiming the right to be permitted to leave the United States and return thereto on any of the grounds stated in the foregoing section, shall apply to such officer under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor, of the district from which he wishes to depart at least a month prior to the time of his departure, and shall make on oath before the said officer a full statement descriptive of his family, or property, or debts, as the case may be, and shall furnish to said officer such proofs of the facts entitling him to return as shall be required by the rules and regulations prescribed from time to time by the Secretary of Labor, and for any false swearing in relation thereto he shall incur the penalties of perjury. He shall also permit the officer to take a full description of his person, which description such officer shall retain and mark with a number. And if, after hearing the proofs and investigating all the circumstances of the case, such officer shall decide to issue a certificate of return, he shall at such time, and place as he may designate, sign and give to the person applying, a certificate containing the number of the description last aforesaid, which shall be the sole evidence given to such person of his right to return. If this last named certificate be transferred, it shall become void, and the person to whom it was given shall forfeit his right to return to the United States.

The right to return under the said certificate shall be limited to one year; but it may be extended for an additional period, not to exceed a year, in cases where, by reason of sickness or other cause of disability beyond his control, the holder thereof shall be rendered unable sooner to return, which facts shall be fully reported to and investigated by the consular representative of the United States at the port or place from which such laborer departs for the United States, and certified by such representative of the United States to the satisfaction of such officer under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor at the port where such Chinese person shall seek to land in the United States, such certificate to be delivered by said representative to the master of the vessel on which he departs for the United States. And no Chinese laborer shall be permitted to reenter the United States without producing to the proper officer at the port of such entry the return certificate herein required. A Chinese laborer possessing a certificate under this section shall be admitted to the United States only at the port from which he departed therefrom, and no Chinese person, except Chinese diplomatic or consular officers, and their attendants, shall be permitted to enter the United States except at the ports of San Francisco, Portland, Oregon, Boston, New York, New Orleans, Port Townsend, or such other ports as may be designated by the Secretary of Labor. (Sept. 13, 1888, c. 1015, § 7, 25 Stat. 177; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428; Mar. 4, 1913, c. 141, § 8, 37 Stat. 738.)

278. **Same; regulations.**—The Secretary of Labor is authorized and empowered to make and prescribe, and from time to time to change and amend such rules and regulations, not in conflict with this chapter, as he may deem necessary and proper to conveniently secure to such Chinese persons as are provided for in articles 2 and 3 of the unratified treaty between the United States and the Empire of China, signed March 12, 1888, the rights therein mentioned, and such as shall also protect the United States against the coming and transit of persons not entitled to the benefit of the provisions of said articles. And he is further authorized and empowered to prescribe the form and substance of certificates to be issued to Chinese laborers under and in pursuance of the provisions of said articles, and prescribe the form of the record of such certificate and of the proceedings for issuing the same, and he may require the deposit, as a part of such record, of the photograph of the party to whom any such certificate shall be issued. (Sept. 13, 1888, c. 1015, § 8, 25 Stat. 478; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

279. **Same; landing Chinese in contravention of law.**—The master of any vessel who shall knowingly bring within the United States on such vessel, and land, or attempt to land, or permit to be landed any Chinese laborer or other Chinese person, in contravention of the provisions of this chapter, shall be deemed guilty of a misdemeanor and, on conviction thereof, shall be punished with a fine of not less than $500 nor more than $1,000, in the discretion of the court, for every Chinese laborer or other Chinese person so brought, and may also be imprisoned for a term of not less than one year, nor more than five years, in the discretion of the court. (Sept. 13, 1888, c. 1015, § 9, 25 Stat. 478; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

280. **Same; masters of vessels in distress excepted from penalty prescribed.**—The foregoing section shall not apply to the case of any master whose vessel shall come within the jurisdiction of the United States in distress or under stress of weather, or touching at any port of the United States on its voyage to any foreign port or place. But Chinese laborers or persons on such vessels shall not be permitted to land, except in case of necessity, and must depart with the vessel on leaving port. (May 6, 1882, c. 126, § 3, 22 Stat. 59; July 5, 1884, c. 220, 23 Stat. 115; Sept. 13, 1888, c. 1015, § 10, 25 Stat. 478; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

281. **Same; altering name in or forging certificate, or false personation.**—Any person who shall knowingly and falsely alter or substitute any name for the name written in any certificate under sections 265, 277, and 287 of this title, or forge such certificate, or knowingly utter any forged or fraudulent certificate, or falsely personate any person named in any such certificate, and any person other than the one to whom a certificate was issued who shall falsely present any such certificate, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined in a sum not exceeding $1,000, and imprisoned in a penitentiary for a term of not more than five years. (Sept. 13, 1888, c. 1015, § 11, 25 Stat. 478; May 6, 1882, c. 126, § 7, 22 Stat. 60; May 5, 1892, c. 60, § 8, 27 Stat. 26; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

282. **Same; arrest and removal of Chinese unlawfully in United States.**—Any Chinese person, or person of Chinese descent, found unlawfully in the United States, or its Territories, may be arrested upon a warrant issued upon a complaint, under oath, filed by any party on behalf of the United States, by any justice, judge, or commissioner of any United States court, returnable before any justice, judge, or commissioner of a United States court, or before any United States court, and when convicted, upon a hearing, and found and adjudged to be one not lawfully entitled to be or remain in the United States, such person shall be removed from the United States to the country whence he came. But any such Chinese person convicted before a commissioner of a United States court may, within ten days from such conviction, appeal to the judge of the district court for the district. A certified copy of the judgment shall be the process upon which said removal shall be made, and it may be executed by the marshal of the district or any officer having authority of a marshal under the provisions of this section. And in all such cases the person who brought or aided in bringing such person into the United States shall be liable to the Government of the United States for all necessary expenses incurred in such investigation and removal; and all peace officers of the several States and Territories of the United States are invested with the same authority in reference to carrying out the provisions of sections 275 and 281 to 283 of this title, as a marshal or deputy marshal of the United States, and shall be entitled to the same fees as compensation as marshals and deputy marshals are authorized to charge and collect, to be audited and paid by the same officers. (Sept. 13, 1888, c. 1015, § 13, 25 Stat. 479; Mar. 5, 1892, c. 60, § 2, 27 Stat. 25; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

283. **Same; diplomatic and consular officers excepted.**—Sections 275 to 282 of this title shall not apply to Chinese diplomatic or consular officers or their attendants, who shall be admitted to the United States under special instructions of the Department of Labor, without production of other evidence than that of personal identity. (Sept. 13, 1888, c. 1015, § 14, 25 Stat. 479; Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

284. **Arrested person to prove right to remain.**—Any Chinese person or person of Chinese descent arrested under the provisions of this chapter shall be adjudged to be unlawfully within the United States unless such person shall establish, by affirmative proof, to the satisfaction of such justice, judge, or commissioner, his lawful right to remain in the United States. (May 5, 1892, c. 60, § 3, 27 Stat. 25.)

285. **Removal of Chinese not entitled to be or remain in United States.**—Any Chinese person or person of Chinese descent, when convicted and adjudged to be not lawfully en-

titled to be or remain in the United States, shall be removed from the United States to China, unless he or they shall make it appear to the justice, judge, or commissioner before whom he or they are tried that he or they are subjects or citizens of some other country, in which case he or they shall be removed from the United States to such country: *Provided*, That in any case where such other country of which such Chinese person shall claim to be a citizen or subject shall demand any tax as a condition of the removal of such person to that country, he or she shall be removed to China. (May 5, 1892, c. 60, § 2, 27 Stat. 25.)

286. **Habeas corpus by Chinese denied landing; bail.**—On an application to any judge or court of the United States in the first instance for a writ of habeas corpus, by a Chinese person seeking to land in the United States, to whom that privilege has been denied, no bail shall be allowed, and such application shall be heard and determined promptly without unnecessary delay. (May 5, 1892, c. 60, § 5, 27 Stat. 25.)

287. **Certificates of residence; arrest and deportation of laborers without.**—It shall be the duty of all Chinese laborers within the limits of the United States who were entitled to remain in the United States before May 5, 1892, to apply to such officers under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor, of their respective districts within six months after November 3, 1893, for a certificate of residence; and any Chinese laborer within the limits of the United States who shall be found within the jurisdiction of the United States without such certificate of residence, shall be deemed and adjudged to be unlawfully within the United States, and may be arrested by any such officers under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor, United States marshal or his deputies, and taken before a United States judge, whose duty it shall be to order that he be deported from the United States, as provided hereafter; unless he shall establish clearly to the satisfaction of said judge that by reason of accident, sickness, or other unavoidable cause he has been unable to procure his certificate, and to the satisfaction of said United States judge, and by at least one credible witness other than Chinese, that he was a resident of the United States on the 5th of May, 1892; and if, upon the hearing, it shall appear that he is so entitled to a certificate, it shall be granted upon his paying the cost. Should it appear that said Chinaman had procured a certificate which has been lost or destroyed, he shall be detained and judgment suspended a reasonable time to enable him to procure a duplicate from the officer granting it, and in such cases the cost of said arrest and trial shall be in the discretion of the court; and any Chinese person, other than a Chinese laborer, having a right to be and remain in the United States, desiring such certificate as evidence of such right, may apply for and receive the same without charge. No Chinese person convicted in any court of the States or Territories prior to November 3, 1893, or of the United States of a felony shall be permitted to register under the provisions of this section; but all such persons who were subject to deportation at that date for failure or refusal to comply with this section shall be deported from the United States as provided, upon any appropriate proceedings pending or which may be hereafter instituted. The order of deportation shall be executed by the United States marshal of the district within which such order is made and he shall execute same with all convenient despatch. Pending the execution of such order, such Chinese person shall remain in the custody of the United States marshal and shall not be admitted to bail. (May 5, 1892, c. 60 § 6, 27 Stat. 25; Nov. 3, 1893, c. 14, §§ 1, 2, 28 Stat. 7, 8; Feb. 14, 1903, c. 552, § 7, 32 Stat. 826; May 4, 1913, c. 141, § 3, 37 Stat. 737.)

288. **Regulations for execution of sections 284 to 287.**—The Secretary of Labor shall make such rules and regulations as may be necessary for the efficient execution of this section and sections 284 to 287 of this title, and shall prescribe the necessary forms and furnish the necessary blanks to enable such officers under the control of the Commissioner General of Immigration as the Secretary of Labor shall designate therefor to issue the certificates required hereby, and make such provisions that certificates may be procured in localities convenient to the applicants, such certificates shall be issued without charge to the applicant, and shall contain the name, age, local residence and occupation of the applicant, and such other description of the applicant as shall be prescribed by the Secretary of Labor, and a duplicate thereof shall be filed in the office of such officer for the district within which such Chinaman makes application. (May 5, 1892, c. 60, § 7, 27 Stat. 26; Mar. 4, 1913, c. 141, § 8, 37 Stat. 738.)

289. **"Laborer" and "merchant" defined; proof for entrance of merchant.**—The words "laborer" or "laborers," wherever used in this section and sections 284 to 288 of this title, shall be construed to mean both skilled and unskilled manual laborers, including Chinese employed in mining, fishing, huckstering, peddling, laundrymen, or those engaged in taking, drying, or otherwise preserving shell or other fish for home consumption or exportation.

The term "merchant," as employed in such sections, shall have the following meaning and none other: A merchant is a person engaged in buying and selling merchandise, at a fixed place of business, which business is conducted in his name, and who during the time he claims to be engaged as a merchant, does not engage in the performance of any manual labor, except such as is necessary in the conduct of his business as such merchant.

Where an application is made by a Chinaman for entrance into the United States on the ground that he was formerly engaged in this country as a merchant, he shall establish by the testimony of two credible witnesses other than Chinese the fact that he conducted such business as hereinbefore defined for at least one year before his departure from the United States, and that during such year he was not engaged in the performance of any manual labor, except such as was necessary in the conduct of his business as such merchant, and in default of such proof shall be refused landing.

The certificate provided for in section 287 of this title shall contain the photograph of the applicant, together with his name, local residence and occupation, and a copy of such certificate, with a duplicate of such photograph attached, shall be filed in the office of such officers under the control of the Commissioner General of Immigration as the Secretary of Labor shall designate therefor.

Such photographs in duplicate shall be furnished by each applicant in such form as may be prescribed by the Secretary of Labor. (Nov. 3, 1893, c. 14, § 2, 28 Stat. 8; May 4, 1913, c. 141, § 3, 37 Stat. 737.)

290. **Commissioner for hearing on arrest of Chinese persons.**—It shall be lawful for the district attorney of the district in which any Chinese person may be arrested for being found unlawfully within the United States, or having unlawfully entered the United States, to designate the United States commissioner within such district before whom such Chinese person shall be taken for hearing. (Mar. 3, 1901, c. 845, § 1, 31 Stat. 1093.)

291. **Same; fees.**—A United States commissioner shall be entitled to receive a fee of $5 for hearing and deciding a case arising under the Chinese-exclusion laws. (Mar. 3, 1901, c. 845, § 2, 31 Stat. 1093.)

292. **Warrants of arrest.**—No warrant of arrest for violations of the Chinese-exclusion laws shall be issued by United

States commissioners excepting upon the sworn complaint of a United States district attorney, assistant United States district attorney, such officers under the control of the Commissioner General of Immigration as the Secretary of Labor may designate therefor, or immigration inspector, United States marshal, or deputy United States marshal, or Chinese inspector, unless the issuing of such warrant of arrest shall first be approved or requested in writing by the United States district attorney of the district in which issued. (Mar. 3, 1901, c. 845, § 3, 31 Stat. 1093; Mar. 4, 1913, c. 141, § 3, 37 Stat. 737.)

293. Exclusion of Chinese from Hawaii; entry into United States from Hawaii.—There shall be no immigration of Chinese into the Hawaiian Islands, except upon such conditions as are now or may hereafter be allowed by the laws of the United States; no Chinese, by reason of anything contained in the joint resolution providing for the annexing of the Hawaiian Islands approved July 7, 1898, shall be allowed to enter the United States from the Hawaiian Islands. (July 7, 1898, No. 55, § 1, 30 Stat. 751.)

294. Certificates of residence for Chinese in Hawaii at time of annexation.—Chinese in the Hawaiian Islands on April 30, 1900, may within one year thereafter obtain certificates of residence as required by section 287 of this title, and until the expiration of said year shall not be deemed to be unlawfully in the United States if found therein without such certificates. No Chinese laborer, whether he shall hold such certificate or not, shall be allowed to enter any State, Territory, or District of the United States from the Hawaiian Islands. (Apr. 30, 1900, c. 339, § 101, 31 Stat. 161.)

295. Laws made applicable to island territory.—The provisions of law contained in this chapter shall apply to the island territory under the jurisdiction of the United States, and prohibit the immigration of Chinese laborers, not citizens of the United States, from such island territory to the mainland territory of the United States, whether in such island territory at the time of cession or not, and from one portion of the island territory of the United States to another portion of said island territory; but they shall not apply to the transit of Chinese laborers from one island to another island of the same group; and any islands within the jurisdiction of any State or the Territory of Alaska shall be considered a part of the mainland under this section. (Apr. 29, 1902, c. 641, § 1, 32 Stat. 176; Apr. 27, 1904, c. 1630, § 5, 33 Stat. 428.)

296. Regulations for execution of law.—The Secretary of Labor is authorized and empowered to make and prescribe, and from time to time to change, such rules and regulations not inconsistent with the laws of the land as he may deem necessary and proper to execute the provisions of this chapter, and with the approval of the President to appoint such agents as he may deem necessary for the efficient execution of this chapter. (Apr. 29, 1902, c. 641, § 2, 32 Stat. 176; Apr. 28, 1904, No. 34, 33 Stat. 591.)

297. Certificates of residence in insular territory; regulations for Philippines.—It shall be the duty of every Chinese laborer, other than a citizen, rightfully in, and entitled to remain in any of the insular territory of the United States on April 29, 1902 (Hawaii excepted), to obtain within one year thereafter a certificate of residence in the insular territory wherein he resides, which certificate shall entitle him to residence therein, and upon failure to obtain such certificate as herein provided he shall be deported from such insular territory; and the Philippine Legislature is authorized and required to make all regulations and provisions necessary for the enforcement of this section in the Philippine Islands, including the form and substance of the certificate of residence so that the same shall clearly and sufficiently identify the holder thereof and enable officials to prevent fraud in the transfer of the same. (Apr. 29, 1902, c. 641, § 4, 32 Stat. 177; Aug. 29, 1916, c. 416, § 12, 39 Stat. 548.)

298. Bertillon system of identification.—So much of the amounts appropriated to prevent unlawful entry of Chinese into the United States, by the appointment of suitable officers to enforce the laws in relation thereto, and for expenses of returning to China all Chinese persons found to be unlawfully in the United States, including the cost of imprisonment and actual expense of conveyance of Chinese persons to the frontier or seaboard for deportation, as may be necessary shall be available for the establishment and maintenance of the Bertillon system of identification at the various ports of entry; but the foregoing provision shall not apply to officials, teachers, students, merchants, or travelers for curiosity or pleasure, or Chinese laborers in transit across the territory of the United States in the course of their journey to or from other countries. (Apr. 28, 1904, c. 1762, § 1, 33 Stat. 428.)

299. Deportation officer.—All Chinese persons ordered deported under judicial writs shall be delivered by the marshal of the district or his deputy into the custody of any officer designated for that purpose by the Secretary of Labor, for conveyance to the frontier or seaboard for deportation in the same manner as aliens deported under the immigration laws. (June 23, 1913, c. 3, § 1, 38 Stat. 65.)

Chapter 8.—THE COOLY TRADE.

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary immigration of "coolies" excepted.
336. Same; inquiry and certificate by consular officer.
337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

Section 331. Cooly trade prohibited.—No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor, owner, or otherwise, build, equip, load, or otherwise prepare, any vessel, registered, enrolled, or licensed, in the United States, for the purpose of procuring from any port or place the subjects of China, Japan, or of any other oriental country, known as "coolies," to be transported to any foreign port, or place, to be disposed of, or sold, or transferred, for any time, as servants or apprentices, or to be held to service or labor. (R. S. § 2158.)

332. Same; forfeiture of vessels.—If any vessel, belonging in whole or in part to a citizen of the United States, and registered, enrolled, or otherwise licensed therein, be employed in the "cooly trade," so called, contrary to the provisions of the preceding section, such vessel, her tackle, apparel, furniture, and other appurtenances, shall be forfeited to the United States, and shall be liable to be seized, prosecuted, and condemned in any of the district courts of the United States for the district where the vessel may be found, seized, or carried. (R. S. § 2159.)

333. Building vessels to engage in cooly trade; penalty.—Every person who so builds, fits out, equips, loads, or otherwise prepares, or who sends to sea, or navigates, as owner, master, factor, agent, or otherwise, any vessel, belonging in whole or in part to a citizen of the United States, or registered, enrolled, or licensed within the same, knowing or intending that such vessel is to be or may be employed in that trade, contrary to the provsions of section 331 of this title, shall be liable to a fine not exceeding $2,000, and be imprisoned not exceeding one year. (R. S. § 2160.)